

Court No. - 32

Case :- WRIT - C No. - 41252 of 2019

Petitioner :- Sandeep Kumar Singh

**Respondent :- Purvanchal Vidyut Vitran Nigam
Limited And 2 Others**

Counsel for Petitioner :- Kamlesh Shrama

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ravi Nath Tilhari,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned provisional assessment dated 06.06.2017 as well as recovery order dated 02.08.2019 passed by respondent no. 2 (Annexure No. 5 & to the writ petition).

(ii) Issue a writ, order or direction in the nature of mandamus directing the respondents not to take any coercive action against the petitioner in pursuance of the provisional assessment dated 06.06.2017 as well as recovery order dated 02.08.2019."

Heard the learned counsel for the petitioner, Mr. Mahboob Ahmad, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 26.12.2019 at

11.00 A.M. before the Respondent No.2, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.2, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of six weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated and the impugned recovery citation shall stand revived automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

With the above observations, the writ petition stands disposed of.

Order Date :- 13.12.2019

Arun